

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE REPEALING CHAPTER 5.72, PUBLIC TRANSPORT, IN ITS ENTIRETY AND RE-CREATING CHAPTER 5.72, PUBLIC TRANSPORTATION, OF TITLE 5, BUSINESS LICENSES AND REGULATIONS, OF THE CHEYENNE CITY CODE.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Chapter 5.72, Public Transport, is repealed in its entirety and a new Chapter 5.72, Public Transportation, of Title 5, Business Licenses and Regulations, of the Cheyenne City Code, is re-created as follows:

**Chapter 5.72
PUBLIC TRANSPORTATION**

5.72.010 Purpose – Authority – General provisions.

A. The purpose of this chapter is to regulate individuals and businesses engaged in public transportation services and the drivers of public transportation conveyances within the city. The word “licensee” used in this chapter shall refer to individuals and businesses engaged in public transportation services. The words “permittee” and “driver” shall refer to individuals permitted under this chapter to operate public transportation conveyances.

B. Cities and towns are authorized by Wyo. Stat. Section 15-1-103 (a)(xiii) and (a)(xli) to license and regulate businesses for the public health, safety and welfare of the community.

C. Public transportation business licenses and public transportation driver’s permits may be issued by the mayor and city clerk pursuant to Section 5.04.020 of city code. Prior to issuance, every application for a public transportation business license and every application for a public transportation driver’s permit must be approved by the chief of police. The chief of police shall have the authority to recommend the approval or disapproval of any application, or any renewal thereof, and may recommend the imposition of reasonable conditions and restrictions upon any license or permit issued pursuant to this chapter. The chief of police shall conduct background and other investigations of applicants, licensees, and permittees as necessary to protect public health, safety and welfare. The chief of police may recommend the disapproval of any initial or renewal application if the application contains incomplete, false, or misleading information. The chief of police may recommend the disapproval of any initial or renewal application if the applicant has in Wyoming or elsewhere, during the one year period prior to the date of the application: (1) suffered the loss of the privilege to drive a motor vehicle, (2) been convicted of driving while under the influence of alcohol, (3) been convicted of any offense relating to controlled substances, (4) been convicted of any crime of violence, or (5) been convicted of theft, burglary, embezzlement, or obtaining money or property under false pretenses. The chief of police may designate one or more officers or employees to assist in the performance of duties and the exercise of powers accorded to the chief of police under this chapter.

D. Each licensee engaged in the business of providing public transportation services under this chapter must obey the motor vehicle and traffic provisions of Title 10 of city code. Each permittee who operates a public transportation conveyance under this chapter must obey all applicable provisions of city code, regardless of whether the permittee is paid a salary, wages, or other form of compensation and regardless of whether the permittee is self-employed.

E. In accordance with Chapter 10.64 of city code, the city traffic engineer will designate and appropriately sign public transportation parking areas (stands) on public streets in such places and in such number as determined by the traffic engineer to be of benefit and convenience to the public.

F. Licenses and permits, including renewals thereof, under this chapter will be issued in accordance with the provisions of Chapter 5.04 of city code, subject to conditions and restrictions imposed pursuant to Section 5.72.010(C) above. Except as provided in Section 5.72.050(E), licenses and permits issued under this chapter shall be effective for a period of one (1) year from the date of issuance. Licenses and permits issued under this chapter may be suspended or revoked pursuant to Chapter 5.04 of city code and may also be suspended or revoked for any violation of Section 5.72.060.

G. A licensee shall comply with the provisions of this chapter regardless of whether the licensee leases or rents public transportation conveyances to drivers, and regardless of whether the licensee pays a salary, hourly wages, or any other form of compensation to a driver employed or engaged to operate public transportation conveyances.

H. The business license and driver permit provisions of this chapter do not apply to the following: services and operations provided by vehicle rental businesses or agencies; local hotel/motel guest shuttle services; businesses whose sole purpose is to provide shuttle transportation services to and from airports; public transportation services provided by federal, state and local governmental agencies; and public transportation carriers subject to rules and regulations of the United States Department of Transportation.

I. The chief of police, or designee, shall have the authority, during normal business hours, and after having provided written notice at least five (5) calendar days in advance, enter the business premises of any licensee solely for the purpose of inspecting business records relating to the licensee's compliance with this chapter.

5.72.020 Definitions.

The following definitions shall apply in the interpretation and enforcement of this chapter:

“Carriage” means any non-motorized vehicle or device propelled by human power or animal power, whether pulled, drawn, pushed or pedaled, which is used to provide public transportation services in, upon, or over any street, alley and other public right-of-way within the city. “Carriage” includes, without limitation, horse-drawn carriages and pedicabs.

“Current Vehicle Inspection Report” means a report prepared by a qualified mechanic or service technician following a detailed inspection of the tires, wheels, braking, lighting, signaling, suspension, and passenger restraint systems of a public transportation conveyance. The detailed physical inspection and the inspection report must be completed not more than ten (10) business days prior to the submission of an application for the issuance or renewal of a public transportation business license or no more than ten (10) business days prior to the date that a public transportation conveyance is placed in service.

“Driver” and “Permittee” mean an individual hired, employed, or otherwise engaged, with or without compensation, to operate a public transportation conveyance.

“For hire” means to provide public transportation services in exchange for any form of monetary remuneration including, without limitation, a fare, a tip, a contribution, a donation, or the exchange of any thing of value through barter.

“License” means the authority granted by the mayor and city clerk to a person to engage in the business of providing public transportation services.

“Licensee” shall refer to an individual or legal entity granted a license under this chapter to engage in the business of providing public transportation services.

“Operating authority” means the authority granted by the Wyoming Department of Transportation for the operation of commercial vehicles to the extent such “operating authority” is required for any public transportation service by Title 31 of the Wyoming Statutes.

“Permit” means the authority granted by the mayor and city clerk to a person to act as a driver of a public transportation conveyance.

“Public transportation conveyance” means any taxicab, limousine, carriage and any other device or apparatus used for the purpose of transporting passengers for hire in, upon, or over any street, alley, or other public right-of-way within the city. The phrase “public transportation conveyance” does not include any vehicle driven by an employee or agent of the owner of the vehicle if: (1) the vehicle is being driven for the personal purposes of the owner of the vehicle; (2) the vehicle is not made available to the public for hire; and (3) the driver of the vehicle does not receive compensation for his or her services or the driver receives compensation on other than a per trip or per mile basis.

“Public transportation services” means providing transportation services for hire in, upon or over any street, alley or other public right-of-way within the city, through the use of taxicabs, limousines, horse-drawn carriages, pedicabs, and like conveyances.

“Taximeter” means an electronic, digital, analog, or mechanical instrument approved by the National Institute of Standards and Technology which measures the distance driven and waiting time and which automatically calculates and registers, at a predetermined rate or rates, the fare to be charged for hiring the taxicab or limousine.

5.72.030 Business license required.

A. No person shall operate a public transportation services business in, upon or over any street, alley or public right-of-way within the city without first obtaining a public transportation business license from the city clerk. Persons desiring to conduct a public transportation business must submit an application, upon a form approved by the city clerk, together with a non-refundable annual license fee of one hundred and fifteen dollars (\$115.00).

B. An application for a public transportation business license must contain such information and documentation as may be determined by the city clerk and the chief of police including, but not limited to the following:

1. If the applicant is an individual, the name and business address of the applicant, the mailing address of the applicant, the business telephone number of the applicant, and the applicant’s date of birth. If the applicant is a partnership or legal entity, the applicant shall disclose the names and business addresses of the persons who hold any legal or beneficial interest in the applicant, the dates of birth of the persons who hold any legal or beneficial interest in the applicant, the street address of the applicant’s principal place of business, the applicant’s principal mailing address, and the applicant’s business telephone number.

2. Wyoming state sales tax number assigned to the applicant, if applicable.

3. Disclosure of whether the applicant has in the ten (10) year period prior to application ever had a license, permit or application relating to a public transportation business revoked, suspended or denied, and whether the applicant, including any person who holds any legal or beneficial interest in the applicant, has ever been convicted of a crime other than a misdemeanor traffic offense.

4. Description and number of public transportation conveyances to be utilized in providing public transportation services, including confirmation by the applicant that applicable insurance coverages as required by this chapter will be in effect and maintained at all times that any public transportation conveyance will be in service.

5. Description of any taximeter installed or utilized, and the method to be utilized, to compute the fare to be charged for hiring a public transportation conveyance.

6. Verification that each driver of a public transportation conveyance will drive or operate such conveyance only under that individual’s permit issued pursuant to this

chapter, that each permitted driver has and will maintain any and all operator's licenses required under Title 31 of the Wyoming Statutes and under rules and regulations of the Wyoming Department of Transportation, that each driver is insurable and that each driver will be maintained as an insured under the licensee's liability insurance coverages.

7. If applicable, a current and valid copy of the Wyoming Department of Transportation operating authority issued for the transportation of passengers for hire.

a. An applicant must comply with this chapter regardless of whether the applicant is exempt from the requirement to obtain operating authority from the Wyoming Department of Transportation.

8. Affirmation that the information contained and submitted with the application form is complete, true and correct. Each applicant shall sign an authorization, in a form prescribed by the chief of police, that shall be sufficient to authorize the chief of police to conduct criminal and other background investigations in the manner provided by Section 5.72.010(C) of city code. Each application shall be signed by the applicant in the presence of a licensed notary public. Each applicant shall verify, that the statements contained in the application are true and correct. The chief of police may recommend the denial of any application that contains false, misleading or incomplete information.

9. A current vehicle inspection report for each public transportation conveyance to be operated by a licensee or permittee.

10. Such other information or documentation requested by the chief of police or city clerk.

C. The chief of police, in collaboration with the city traffic engineer, shall have the authority to determine carriage routes, carriage service zones, and carriage service hours. The chief of police shall have the right to restrict carriage operations to such routes, zones, and hours of operation. A mechanism to curtail animal waste is required for animal drawn carriages.

D. The chief of police may impose a reasonable fee for costs associated with any criminal or other background investigation of an applicant, including the costs of fingerprinting.

E. Upon receipt of an application for a license, the city clerk will forward a copy to the chief of police. The chief of police shall conduct criminal or other background investigations in the manner provided by Section 7.72.010(C) of city code.

5.72. 040 Proof of insurance – maintenance – health and safety requirements.

A. No person shall provide public transportation services without having submitted, with each application for issuance or renewal of a public transportation business license, proof that automobile liability insurance coverage must be submitted with an application indicating coverage for the time the license is in effect and must be in an amount not less than Five Hundred Thousand Dollars (\$500,000.00) CSL (combined single limit - each accident). A certification that liability insurance coverage required by this section is in effect shall be maintained in each public transportation conveyance.

B. Each licensee will be responsible for maintaining public transportation conveyances to insure that said conveyances can be used to safely transport members of the public. With each application for the issuance or renewal of a public transportation business licensee, the applicant shall submit a current vehicle inspection report for each public transportation conveyance to be operated under the auspices of the licensee. A current vehicle inspection report shall also be submitted to the chief of police within five (5) business days after a public transportation conveyance is placed in service. The licensee shall be responsible for the costs of inspections and repairs which may be ordered by the chief of police.

5.72.050 Public Transportation Driver's permit required.

A. No person shall operate a public transportation conveyance without having a public transportation driver's permit issued pursuant to this chapter. A person shall be eligible to receive a public transportation driver's permit if: he or she is at least eighteen (18) years of age; has a valid driver's license as required by Wyoming state law; and has submitted an application on a form prescribed by the city clerk and the chief of police, together with a non-refundable annual permit fee of twenty-five dollars (\$25.00).

B. An application for a public transportation driver's permit must contain the following information, and such other information and supporting documentation as requested by the chief of police:

1. Full name of applicant, applicant's physical residence address, telephone number, date of birth, and verification of eligibility to be employed under federal laws pertaining to immigration.

2. All names, nicknames and aliases by which the applicant has been known.

3. Name of licensee for whom applicant will be driving a public transportation conveyance.

4. Two front-face portrait photographs of the applicant taken within thirty (30) days of the date of application. Each photograph shall be not less than two inches by two inches in size. One photograph shall be retained by the city clerk and one photograph shall be affixed to the public transportation driver's permit issued pursuant to this chapter.

5. A complete disclosure of all arrests, all criminal charges pending against the applicant at the time of application, including charges relating to violations of motor vehicle and traffic laws, all convictions of any felony or misdemeanor offense, including violations of motor vehicle and traffic laws, during the ten (10) year period prior to the date of application, and, for each such offense, the name and location of the court in which the conviction was rendered, the nature of the offense which resulted in conviction, the date of the conviction, and the sentence imposed. The chief of police may recommend the disapproval of an application for a public transportation driver's permit if the issuance of a permit to the applicant would be contrary to the public interest.

6. A complete disclosure of all instances in which the applicant's privilege to operate a motor vehicle, of any kind, has been revoked or suspended, all instances in which the applicant was denied the issuance or renewal of a driver's license of any kind by any state, all instances in which the applicant has been denied the authority to provide public transportation services in any state, and all instances in which the applicant's authority to provide public transportation services in any state has been revoked or suspended.

7. Affirmation that the information contained and submitted with the application form is complete, true and correct. Each applicant shall sign an authorization, in a form prescribed by the chief of police, that shall be sufficient to authorize the chief of police to conduct criminal and other background investigations in the manner provided by Section 5.72.010(C) of city code. Each application shall be signed by the applicant in the presence of a licensed notary public. Each applicant shall verify, that the statements contained in the application are true and correct. The chief of police may recommend the disapproval of any application that contains false, misleading, or incomplete information.

8. Such other information or documentation requested by the chief of police or city clerk.

C. The chief of police may impose a reasonable fee for costs associated with any criminal or other background investigation of an applicant, including the costs of fingerprinting.

D. Upon receipt of an application for a permit, the city clerk will forward a copy to the chief of police. The chief of police shall conduct criminal or other background investigations in the manner provided by Section 5.72.010(C) of city code. The chief of police may examine any applicant to verify the applicant's knowledge, skills and abilities to safely operate a public transportation conveyance. After completion of the background investigation, the chief of police may recommend the approval or disapproval of the application. The mayor and city clerk may then issue a permit which shall have affixed one of the photographs submitted with the application. The permit must be continuously and conspicuously displayed within each public transportation conveyance while being operated by the driver.

E. Any driver or permittee may change his or her affiliation from one public transportation business licensee to another licensee by submitting written notice to the city clerk with payment of a fee of ten dollars (\$10.00) and two front-face portrait photographs of the applicant taken within thirty (30) days of the date of written notice. Each photograph shall be not less than two inches by two inches in size. If the written notice is in proper form as determined by the city clerk, a new permit will be issued with one photograph affixed to the permit. The permit shall be effective for the remainder of the term of the existing permit.

F. A driver or permittee may provide public transportation services for more than one licensee pursuant to provisions of subsection E. of this section. After review by the chief of police, a separate permit may be issued which will identify the licensee for whom the driver or permittee will be providing public transportation services. Each additional permit issued pursuant to this subsection shall be effective for the remainder of the term of the oldest permit, which remains in effect, issued pursuant to an applicant's initial or renewal application under subsection E. of this section.

5.72.060 Prohibited conduct of permittees.

A. It shall be unlawful for any person holding a public transportation driver's permit to:

1. Provoke any disturbance, confrontation, or act of violence with passengers, members of the public, or other licensees or permittees licensed under the provisions of this chapter.

2. Operate a public transportation conveyance if the number of passengers exceeds the rated seating capacity of the conveyance.

3. Knowingly operate a motor vehicle used as a public transportation conveyance which has a faulty odometer or taximeter or any other mechanical or electrical defect which renders the conveyance unsafe for the transportation of passengers or which would cause the operation of the conveyance to be unlawful under city code.

4. Operate a public transportation conveyance when illness, physical or medical condition or infirmity of body or mind, including being under the influence of prescription or over-the-counter drugs, substantially affects the driver's ability to provide for the safe operation of a public transportation conveyance, or may cause any passenger to be exposed to any contagious illness or disease.

5. Operate a public transportation conveyance while using a cell phone in violation of city code.

6. Knowingly allow a public transportation conveyance to be used in the commission of any crime.

7. Use a public transportation conveyance to carry or deliver alcoholic or malt beverages which are not in the ownership and possession of a passenger.

8. Operate a public transportation conveyance for more than fourteen continuous hours in any twenty-four (24) hour period, unless there is a rest period of at least six (6) continuous hours in said period.

9. Transport any child in any manner which violates state laws regarding the transportation of children in a motor vehicle.

10. Attempt to divert patronage from any hotel, restaurant, business establishment or any other licensee for consideration in any form.

11. Transport any passenger by any route other than the most direct and expeditious route possible that will carry the passenger safely to his or her destination, unless otherwise directed by the passenger or pursuant to an approved carriage route or service zone.

12. Following payment of the fare, upon request by the passenger, the driver shall provide a receipt for payment. The receipt shall include the following information: the total fare charged to the passenger, the date and time of day that the passenger was delivered to his or her destination, the name, address, and telephone number of the licensee, and the name of the driver or permittee.

13. Operate a public transportation conveyance in any manner which creates an unreasonable risk of harm to other persons, property, or any animal used to power any public transportation conveyance.

14. Commit any act which is defined as a felony under any applicable federal or state law.

5.72.070 Posting of fares, insurance.

A. A schedule of public transportation fares and charges, and information reflecting the licensee's current insurance coverages, including the name of the licensee's insurance carrier, must be prominently and clearly displayed in a conspicuous place within each public transportation conveyance.

B. A copy of the schedule of fares and charges must be submitted to the city clerk and chief of police no later than the first day that the licensee begins public transportation services. A copy of said schedule shall be submitted with each application for renewal of a public transportation services business license. Any changes or revisions to the schedule must be submitted prior to implementation and must include the date the changes or revisions will become effective.

C. Each taximeter must be clearly visible to passengers and must be calibrated in accordance with standards adopted by the National Institute of Standards and Technology.

5.72.080 Operational conditions; trip sheets; restrictions.

A. Licensees shall notify the chief of police in writing within five (5) business days after any public transportation conveyance is added to or removed from service, excluding those temporarily out of service due to mechanical repairs.

B. Licensees shall notify the city clerk and chief of police in writing within two (2) business days after any driver has separated from the service of the licensee. A driver who is no longer employed by or otherwise engaged by a licensee must surrender his or her permit to the city clerk.

C. Licensees and permittees shall maintain all public transportation conveyances in a clean and sanitary manner, free of debris and litter. Upon the completion of each trip, the driver must inspect the conveyance to determine if any personal property has been left in the conveyance. If the owner of the property is known, the driver shall contact the owner by any reasonable means. If the owner of the property is not known or cannot be contacted, the driver shall deliver the property to the licensee as soon as practicable. The licensee should make a reasonable effort to identify and

contact the owner of the property. If the licensee is unable to contact the property owner and if the licensee receives no contact or communication from the owner for a period of sixty (60) days, the licensee may dispose of the property after consultation with the chief of police.

D. Licensees shall maintain daily passenger transportation trip sheets which may be completed by drivers in paper format, through dispatch records, or through computerized records as long as such records contain the minimum information required. Daily trip sheet records must be maintained by the licensee for a period of not less than two (2) years. Minimum information to be completed and maintained on the daily trip sheet shall include:

1. Date of trip (including month, day, year and day of week);
 2. Location and time of each passenger pickup and drop-off;
 3. Number of passengers (including adults and children) transported during each trip;
 4. Starting and ending odometer reading for each trip
 5. Starting and ending time for each trip;
 6. The fare or other charge assessed and the manner in which the fare was paid;
- and
7. The name of the driver, the permit number, and the driver's hours of duty.

E. License plates, registrations, proof of insurance coverages, and such other tags, stickers, or other documents required by state law and city code shall be displayed or carried in or upon each public transportation conveyance.

F. Licensees will require drivers of carriages propelled by animal power to:

1. Operate the carriage at a speed no faster than a slow trot;
 2. Provide for the humane care of the animal, including water, food and rest periods;
 3. Maintain tack in good and safe condition;
 4. Be the first person into the carriage and the last person to exit the carriage;
- and
5. Attend to the carriage at all times.

G. Licensees will require drivers of carriages propelled by human power to:

1. Operate the carriage at a safe speed and in a safe manner;
2. Provide adequate food, water, and rest periods for the person or persons propelling any carriage;
3. Attend to the carriage at all times unless the carriage is secured; and
4. Instruct drivers that carriages propelled through human power are subject to city code pertaining to the operation of vehicles.

H. A driver is not required to transport any passenger if the passenger poses an unreasonable risk to the driver's health and safety.

5.72.090 Public transportation identification.

A. Each licensee providing public transportation services commonly known as taxicab services must display or depict the company's distinct logo on each motor vehicle being utilized as a taxicab, including the licensee's business name and telephone number. Each licensee's company logo must be approved by the chief of police prior to use. No logo shall be approved if the same are so similar to those of another licensee that public confusion is likely.

B. Licensees providing limousine services may implement a color scheme, logo or markings upon approval of the chief of police.

C. Licensees providing carriage services may implement a color scheme, logo or markings upon approval of the chief of police.

5.72.100 Passenger payment.

It shall be unlawful for any person or passenger to refuse to pay for public transportation services which have been lawfully provided to such person or passenger. It shall be unlawful to hire a public transportation conveyance with the intent to defraud the licensee or driver of the value of services provided. It shall be unlawful for any person to provide public transportation services without having obtained a license pursuant to the provisions of this chapter. It shall be unlawful for any person to transport a passenger in a public transportation conveyance without having obtained a permit pursuant to the provisions of this chapter. It shall be unlawful for any person to intentionally or recklessly damage or destroy any public transportation conveyance or any component thereof.

5.72.110 Violations – Penalty.

Any violation of Section 5.72.100 and/or other provisions of this chapter shall constitute a misdemeanor, punishable in accordance with the general penalty provision of city code.

Section 2. That this ordinance shall be in full force and effect upon its approval and publication. All valid public transportation licenses and permits issued by the city clerk prior to the effectiveness of this ordinance shall remain in full force and effect until the expiration of said current licenses and permits. The provisions of this chapter shall apply to renewal applications submitted by any current licensee or permittee.

FIRST READING:

SECOND READING:

THIRD AND FINAL READING:

RICHARD L. KAYSEN, MAYOR

(SEAL)
ATTEST:

CAROL INTLEKOFER, CITY CLERK

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